West Allis Police Department — Incident Report

Incident: Synthetic Narcotic-Possession

Incident Report Number:	Between: Date - Time		And/At: Date-Time	
20-004270			2/3/20	21:34

Incident Location: S 89 St/W Mitchell St

CFS Code-1:	CFS Code-2:	CFS Code-3:	Offense Code-4:
3542	5403	ZRO9249	
CFS Code-5:	CFS Code-6:	CFS Code-7:	CFS Code-8:

	Name *(Last, First, Middle)*	DOB:	Race/Sex
PHL	Parrott, Mianna	[redacted]	B/F

Address: *(Address, City, State, Zip)*: 8901 W Lincoln Ave, West Allis, WI, 53227 — Phone 1:

Employer: — Phone 2:

Employer Address: — Work Phone #:

	Name *(Last, First, Middle)*	DOB:	Race/Sex
OWI	Rosebrook, Kyle Anthony	[redacted]	W/M

Address: *(Address, City, State, Zip)*: [redacted] — Phone 1: [redacted]

SUMMARY

PO Dobschuetz reports: ****OWI 1st / Possession of Controlled Substance****

On 02/03/2020 at 2134hrs., officers responded to 89/Mitchell regarding a male party passed out behind the wheel of a vehicle. Officers utilized non-contact vehicle containment and observed the vehicle was still in drive and the brake was on. Contact was ultimately made with **Kyle A. Rosebrook M/W** [redacted] who admitted to taking Xanax and Buspirone. He exhibited slow and slurred speech, was unsteady on his feet, and had watery eyes. He performed poorly on SFST's and was arrested. He was also in possession of several Xanax bars without a valid prescription. After a consented blood draw he was processed at the WAPD before being released to a responsible party. This case will be reviewed by the Milwaukee DA's Office.

Vehicle Information: (*Year, Make, Model, Style, Color*)

License Number:	State:	Expiration Year:	Vin:	Insurance Company:

Other Vehicle Information: — NCIC#:

Reporting Officer(s):	Payroll Number :	Report Date:
Dobschuetz, Michael	MD9968	02/04/2020

Time Received:	Time Cleared:	Unit(s) Assigned:	Pages:
21:34:00	00:25:04	221, 222, 208, 511	1 Of 7

Reviewed by:	Payroll Number :	Copy To
Clerical and Coding Manz, Tra	TM9656	

Date: 02/04/2020

CFS Code-1: 3542

Incident Report Number: 20-004270

NAMES

Responsible Party
Sweeney, Josie Paige W/F-[redacted]

Contact
Vogel, Kevin J W/M-[redacted]

NARRATIVE

At the time of this investigation I was wearing my WAPD issued body camera, which was functional and activated. The body worn camera footage was categorized as misdemeanor arrest. See video recording for precise details as the following is a summary based off little or no review.
Squad Video System was operational.

REPORTING OFFICER: M Dobschuetz (Squad 222)

VEHICLE IN MOTION

On 02/03/2020 at approximately 2134hs., officers were dispatched to the area of S 89 St/W. Mitchell St., regarding a male party who was slumped over in his vehicle. The vehicle was described as a dark color with Wisconsin plate #ABA4690. Upon arrival I observed a purple colored Toyota on S 89 St., just south of W. Mitchell St., stopped in the middle of the road and was bearing WI plate #ABA4690. The headlights were on and I observed a M/W, later identified via IL identification card as Kyle A. Rosebrook M/W [redacted] slumped over in the front driver seat.

As I approached the vehicle I could hear that the vehicle was running. I looked

in the driverside window and noticed that the vehicle was still in drive and the break lights were on, indicating he had his foot on the brakes. At this point Sergeant Iskandarani and I utilized a non-contact vehicle containment (NCVC) which we are both trained in to ensure the vehicle doesn't move or flee from the scene.

I approached the driver side again and attempted to open the driver door, but it was locked. After I pounded on the window several times Kyle eventually woke up. I advised Kyle to put the vehicle in park and turn the vehicle off after he had rolled down his window. I had him give me the car keys, which I placed on top of the hood.

PERSONAL CONTACT

I asked him why he was slumped over and he stated he didn't realize he was. I had Kyle exit the vehicle to continue speaking with me. As I was asking him questions he was slow at responding. I asked him what he took today and he stated he took Xanax. I asked him how long ago he took it and he was slow at responding and eventually told me two hours ago and stated he was prescribed Xanax. I asked him where he was coming from and he stated he was coming from his friend's house which is in the area of 31/Juneau in the City of Milwaukee. He stated he was on his way home located at [redacted].

I asked if he was prescribed anything else and he stated he is also prescribed Buspirone and Lexapro. He stated he last took those around 1 or 2PM today. He stated he doesn't use any illegal drugs and he stated he didn't feel impaired.

Based on him passed out behind the wheel of a motor vehicle that was still in drive and running, his admission to taking medications earlier in the day, his slow and thick speech, and being unsteady on his feet, I felt that Kyle was likely under the influence of an unknown drug. I asked if he would be willing to perform Standardized Field Sobriety Tests (SFSTs), which he agreed to do. The tests were conducted on the sidewalk which was flat and free of any obstructions.

CONTACT WITH KEVIN VOGEL

See Officer Behnke's supplemental report.

PRE-ARREST SCREENING

Horizontal Gaze Nystagmus

Prior to starting HGN, I faced Kyle away from my emergency lights. Kyle was asked if he could see my pen and was instructed to touch the tip of my pen. I instructed Kyle to follow the tip of my pen with his eyes only and not to move his head. Kyle stated that he understood my directions.

I checked for equal pupil size and equal tracking, a lack of smooth pursuit,

distinct sustained nystagmus at maximum deviation and an onset of nystagmus, prior to a 45-degree angle. I checked each eye twice for each clue, starting with the left eye. I also checked for vertical nystagmus.

Results: When Kyle was advised to touch the tip of my pen, missed the pen and touched the tip of the pen with the middle of his finger. I observed a lack of smooth pursuit, distinct & sustained nystagmus at maximum deviation in both eyes. I did not observe an onset of nystagmus prior to a 45 degree angle.

I did not observe vertical gaze nystagmus, a possible indictor of a high level of intoxication.

Kyle exhibited 4 clues or indicators of a possible total of 6 clues or indicators a person who may be intoxicated by alcohol or drugs may exhibit.

WALK AND TURN

I placed Kyle in the instructional stance by having Kyle place his left foot on an imaginary straight line with the right foot in front, heel to toe. I told Kyle to keep his arms at his side and maintain that position until I told him to begin the test. I gave Kyle a complete set of instructions and a demonstration of the test. Kyle stated he understood my directions.

Results: During the first nine steps Kyle missed heel to toe by approximately two inches on step 2, stepped off line on step 5, and took a total of eight steps. On the second nine steps he stepped off line on step 7 and took a total of 13 steps before completing the test.

Kyle exhibited 3 clues or indicators of a possible total of 8 clues or indicators a person who may be intoxicated by alcohol or drugs may exhibit.

ONE LEG STAND

I gave Kyle a complete set of instructions and a demonstration of the test. Kyle stated he understood my directions.

Results: Kyle began the test by raising his right foot. He placed his foot down on two different occasions and was swaying while balancing which caused him to move backwards.

Kyle exhibited 2 clues or indicators of a possible total of 4 clues or indicators a person who may be intoxicated by alcohol or drugs may exhibit.

ARREST DECISION

Based on my observation of Kyle being passed out behind the wheel of a motor vehicle that was still in drive and running in the middle of the road, his

admission to taking medications earlier in the day, his slow and thick speech, being unsteady on his feet, and his poor performance on the SFST's I arrested him for OWI.

Kyle was handcuffed, searched and conveyed to the Aurora West Allis Medical Center by Officer Dobschuetz to complete the blood draw.

SEARCH OF VEHICLE / OFFENDER

Officers searched the vehicle and nothing of evidentiary value was located inside the vehicle. While conducting a search incident to arrest of Kyle, I located 4 loose pills in his front right pants pocket. The pills were green and rectangular and based off my training and experience I suspected them to be Xanax. Nothing else of evidentiary value was located on his person.

OTHER OCCUPANTS IN THE VEHICLE/DISPOSITION

There were no other occupants inside the vehicle.

VEHICLE & KEYS DISPOSITION

N & S Towing responded to the scene and towed the vehicle for safe keeping. Officer Komorowski remained on scene until the tow was complete.

DWI PROCESS

CITATION ISSUANCE

While on scene I explained to Kyle that he would be receiving municipal citation #BC373346-1 for OWI 1st offense. He signed a PR bond and was given copies of both.

INFORMING THE ACCUSED

On 02/03/2020 at 2205hrs., while Kyle was in the back of my squad I read the Informing the Accused form to him and Kyle stated he would submit to a blood test.

BLOOD DRAW INFORMATION/OBSERVATIONS

On 02/03/2020 at approximately 2232hrs., a blood sample was taken from Kyle by Phlebotomist Mianna Parrott of Aurora West Allis Medical Center. The paperwork was completed and the blood sample was turned over to Officer Dobschuetz. The blood sample was transported to the West Allis Police Department and placed on property.

BOOKING PROCESS

Kyle was photographed, fingerprinted, and booked under WAPD #20-000560 for OWI 1st Offense and Possession of a Controlled Substance.

DRUG IDENTIFICATION

I utilized www.drugs.com, which I am familiar with and used in the past to identify the 4 green rectangular pills I seized from Kyle. The pills were green with the Imprint "S 90 3" on them. They were identified as Alprazolam (Xanax) and is listed as a schedule 4 drug.

PROPERTY

The 4 Alprazolam pills were seized and placed on property under WAPD #20-000778-2.

The blood kit was placed on property as evidence under WAPD #20-000778-1.

SIU REFERENCE TAB / SIU TAB

I completed both the SIU reference tab and SIU tabs in Phoenix.

BAC & OTHER ADDITIONAL CITATIONS

Kyle was issued municipal citation #BE974433-5 for Operating without a valid license. He signed a PR Bond and was given copies of both.

Additional citations are pending an alcohol/drug panel test.

QUESTIONING

On 02/03/2020 at approximately 2329hrs., I read Kyle the Pre-Interrogation Warnings as they are written on the Alcohol/Drug Influence Report form. Kyle stated he agreed to answer questions, concerning this arrest and signed the Alcohol/Drug Influence Report form. The interview was recorded on my body worn camera.

Kyle stated he was operating a motor vehicle and was on 89th street. He was on his way home to 88/Maple and was coming from downtown Wauwatosa. He stated today's date is the 24th (actual is 03). I asked him what the time was and he stated it was 830PM (actual time was 1130PM). He stated he slept last night from 3AM - 7AM, which he stated was a normal amount for him lately.

He stated he is under a doctor's care for anxiety and has taken Xanax in the last 24 hours and last took it around 7AM, which he stated he is prescribed. He didn't have a valid prescription and stated he was carrying the Xanax because he didn't

want people to take them from him if he had the bottle. He also stated he takes Buspirone twice a day and last took it at 830PM. He hasn't been to the dentist in the last 24 hours, doesn't have GERD or diabetes. He wasn't injured recently and doesn't have any physical defects. I asked if he has been drinking and he stated no. He hasn't been using drugs and stated he wasn't under the influence of alcohol or drugs at this time.

OFFENDERS RELEASE

On 02/03/2020 at approximately 2356hrs., Kyle was released to the care and supervision of Josie P Sweeney F/W [redacted], who read the release form, agreed to its provisions and signed the release form. A copy of the release form was supplied to Josie, prior to Kyle's release.

CASE DISPOSITION

Kyle was given a West Allis Municipal Court date of March 09, 2020 at 0830hrs., as DOT records revealed that this is Kyle's first offense for OWI.

Kyle was given a business card for N&S Towing, as to make arrangements for picking up his vehicle at a later date. This case will be referred to the Milwaukee DA's Office regarding the possession of the Xanax.

West Allis Police Department

Supplemental Report

Incident Report Number:	Incident Location:		Incident Date:
20-004270	S 89 St/W Mitchell St		02/03/2020
New Incident:	**Original CFS Code - 1:**	**New CFS Code -1 :**	**New CFS Code - 2:**

OTHER NAMES

Rosebrook, Kyle Anthony W/M-[redacted]

West Allis PD of 11301 W Lincoln Ave
West Allis,WI,53227
Phone 1:(414) 302-8000

PROPERTY LIST

Seq#	Reason	Make/Model	Description/Serial#	Quan/Value
20-000778				
1	EVI		Blood Kit	1.000 $0.00 [Recovered]
2	SEI		Xanax bars (Imprint S 90 3 - Green)	4.000 $0.00 [Recovered]

Reporting Officer(s):		Payroll Number :	Report Date:
Dobschuetz, Michael		MD9968	02/04/2020
Reviewed by:	**Payroll Number :**	**Copy To:**	**Page:**
Pasdera, Trever	TP1851		1 Of 1

West Allis Police Department

Supplemental Report

Incident Report Number:	Incident Location:		Incident Date:
20-004270	S 89 St/W Mitchell St		02/03/2020
New Incident:	**Original CFS Code - 1:** 3542	**New CFS Code -1 :**	**New CFS Code - 2:**

NAMES

Contact

Vogel, Kevin J W/M-[redacted]

[redacted]

NARRATIVE

Officer Behnke reports...

On 02/03/2020 at 2134 hours, I responded to the 8900blk of W. Mitchell St. regarding a complaint of a subject passed out behind the wheel of a vehicle. I arrived on scene and spoke with one of the callers, identified as Kevin J. Vogel (M/W [redacted]).

CONTACT WITH KEVIN VOGEL

I spoke Vogel with who stated he was on his way to visit his friend, Kayla M. Wiese (F/W [redacted]), who advised him over the phone that there was a subject passed out behind the wheel in front of her house and in the roadway. Vogel stated this phone call to Wiese occurred at about 2120 hours. Vogel stated when he arrived at Wiese's residence he observed the driver still passed out behind the wheel.

Vogel stated he approached the vehicle and shined a flashlight on the driver who was the lone occupant of the car. Vogel stated the driver was breathing but unresponsive. Vogel stated he called the police at that time.

END OF REPORT

Reporting Officer(s):		Payroll Number :	Report Date:
Behnke, Aric		AB2771	02/05/2020
Reviewed by: Orlowski, Rick, Jr.	**Payroll Number :** RO9249	**Copy To:**	**Page:** 1 Of 1

West Allis Police Department

Supplemental Report

Incident Report Number:	Incident Location:		Incident Date:
20-004270	S 89 St/W Mitchell St		02/03/2020
New Incident:	Original CFS Code - 1: 3542	New CFS Code -1 :	New CFS Code - 2:

NARRATIVE

ADA REVIEW 03-04-20

Barwick reports:

ADA Simpson no processed this case.

Reporting Officer(s):		Payroll Number :	Report Date:
Barwick, Steven		SB1805	03/04/2020
Reviewed by: Orlowski, Rick, Jr.	Payroll Number : RO9249	Copy To:	Page: 1 Of 1

West Allis Police Department

Supplemental Report

Incident Report Number:	Incident Location:		Incident Date:
20-004270	S 89 St/W Mitchell St		02/03/2020
New Incident:	**Original CFS Code - 1:** 3542	**New CFS Code -1 :**	**New CFS Code - 2:**

NARRATIVE

Officer Dobschuetz reports:

ETHANOL RESULTS

On 03/11/2020, I received the results from the blood test performed on Rosebrook's blood sample (20FX002713). The Wisconsin State Laboratory of Hygiene performed an ethanol analysis of Rosebrook's blood sample. The final results was no ethanol detected.

Additional test results are pending a drug panel test.

END OF SUPPLEMENT

Reporting Officer(s):		Payroll Number :	Report Date:
Dobschuetz, Michael		MD9968	03/11/2020
Reviewed by: Orlowski, Rick, Jr.	**Payroll Number :** RO9249	**Copy To:**	**Page:** 1 Of 1

West Allis Police Department			Supplemental Report
Incident Report Number: 20-004270	Incident Location: S 89 St/W Mitchell St		Incident Date: 02/03/2020
New Incident:	Original CFS Code - 1: 3542	New CFS Code -1 :	New CFS Code - 2:

NARRATIVE

Officer Dobschuetz reports:

DRUG PANEL RESULTS

On 10/13/20 I received the blood results from this incident. The Wisconsin State Laboratory of Hygiene reported Rosebrook's drug panel results included:

Morphine 15 ng/mL
Alprazolam 86 ng/mL

DRUG RECOGNITION EXPERT REVIEW

Morphine is a Narcotic Analgesic and Alprazolam is a CNS Depressant. I know from training and experience as a West Allis Police Officer and a State of Wisconsin certified DRE, that both CNS Depressants and Narcotic Analgesics can have an impairing effect on a person's ability to safely operate a motor vehicle.

COMMON SIGNS OF A NARCOTIC ANALGESIC

With a Narcotic Analgesic a person's pupils are constricted. The reaction to light is little or none visible, slow pulse rate, lowered blood pressure, lowered body temperature, and flaccid muscle tone. Horizontal gaze nystagmus, vertical nystagmus, and lack of convergence will not be present.

A person taking a Narcotic Analgesic may have droopy eyelids (ptosis),drowsiness, nausea, be "on the nod," depressed reflexes, low raspy slow speech, dry mouth, facial itching, euphoria, fresh puncture marks, track marks, sensory distortions, disoriented, slow breathing, and constricted pupils.

The duration of effects are as follows:

Heroin: 4-6 hours
Methadone: Up to 24 hours
Others: Varies

The usual methods of administrations are injected, oral, smoked, and insufflated. The overdose signs are slow shallow breathing, clammy skin, coma, and/or convulsions.

COMMON SIGNS AND SYMPTOMS OF A CNS DEPRESSANT

With CNS Depressants pupil sizes are normal; however, Soma, Quaaludes, and some antidepressants usually dilate. The reaction to light is slow and pulse rate is lowered, but Quaaludes, alcohol, and some antidepressants may elevate. Blood pressure is lowered, body temperature is normal, and muscle tone is flaccid. Horizontal gaze nystagmus and lack of convergence will be present. Vertical nystagmus may also be present in high doses.

A person taking CNS Depressants may be uncoordinated/disoriented, appear sluggish, have thick slurred speech, drunk-like behavior, gait ataxia, drowsiness, droopy eyes, and be fumbling.

The duration of effects are as follows:

Barbiturates: 1-16 hours
Tranquilizers: 4-8 hours
Methaqualone: 4-8 hours

The usual methods of administration are oral and injected. The overdose signs are shallow breathing, cold clammy skin, pupils dilated, rapid weak pulse, and/or coma.

END OF SUPPLEMENT

You are Notified to Pay or Appear

Appearance Required: NO

Date: MAR-09-2020

Time: 08:30 AM

WEST ALLIS CITY MUNICIPAL COURT
11301 W LINCOLN AVE
WEST ALLIS, WI 53227
(414) 302-8181 WWW.WESTALLISWI.GOV

Form No. and Version CT: MV4017 0901

CITATION NO. BC373346-1

Estimated Points: 6

DEPOSIT Cash- Card: $861.00

Court Use

DA: N

Defendant(Last Name, First, Middle), Street Address, P.O. Box, City, State, Zip

ROSEBROOK, KYLE A

[redacted]

Birth Date	Sex	Race	Telephone Number	HT	WT	Hair	Eyes
[redacted]	M	W	[redacted]	510	160 LBS	BROWN	BLUE

Driver License/Identification Card Number	State	Exp. Yr.
[redacted]	WI	

OPERATING AS: DRIVER

License Plate Number	Plate Type	State	Exp. Yr.	Vehicle Class	Vehicle Endorsements
ABA4690	AUT	WI	2020	D	

Vehicle Identification Number	US DOT No.	Hazmat No.	Holds CDL	CDL Waiver
JTKDE167780225114			N	

Vehicle Year	Make	Type	Color
2008	TOYT	HB	PLE

Plaintiff

CITY OF WEST ALLIS

Ordinance Violated:

Adopting State Statute: **346.63(1)(A)**

Violation Description: **OPERATING WHILE UNDER THE INFLUENCE**

BAC:

Overweight:

Agency Space: **20-004270**

Week Day	Date	Time	Actual Speed	Legal	Over
MONDAY	02/03/2020	09:34 PM			

County	City/Village/Town
MILWAUKEE - 40	WEST ALLIS - 60, CITY

ON Hwy No. and/or Street Name: **S 89TH ST**

Estimate Distance: **38 FT SOUTH**

From/AT Hwy No. and/or Street Name: **W MITCHELL ST**

GPS Coordinates: **43.011844 -88.023504**

Minor Passenger: **N**

Officer Name	Zone	RR	Utility	School	Const	Accident Severity
OFFICER M. DOBSCHUETZ		N	N	N	N	

Officer ID	Department	Date Citation Served,	Method
9968	WEST ALLIS POLICE DEPARTMENT	02/03/2020	IN PERSON

INSTRUCTIONS - READ CAREFULLY

COURT APPEARANCE REQUIRED - If your citation is checked 'yes' following 'Appearance Required,' you MUST appear in court. The 'Court Appearance Not Required' instructions do not apply to you.

COURT APPEARANCE NOT REQUIRED - IF YOU WISH TO DISPUTE THE CITATION, you must either appear in court or enter a 'not guilty' plea by mail prior to your court date. Please include a photocopy of your ticket and your correct mailing address OR your correct name and mailing address, citation number, court appearance date listed on the citation, offense, and arresting police agency. These should be mailed to the court address.

You may demand a jury trial, rather than a trial before a judge, but must make that demand in writing and pay the proper fee within 10 days of entering a not guilty plea. Make check payable to the Clerk of Court and forward it to the address shown above. Jury demands in Municipal court can only be made for intoxicated driving charges.

If you have a disability and need help in court, please contact the above Clerk of Court's office.

IF YOU DO NOT WISH TO DISPUTE THE CITATION, mail the 'deposit' amount, by your court date, with a photocopy of your citation OR your correct name and address, citation number, court appearance date listed on the citation, offense and arresting police agency.

Make check payable to the Clerk of Court and mail it to the court address. You do not need to appear. The court will find you guilty and keep the 'deposit' amount as payment for your citation.

IF YOU DO NOTHING, the court may issue a warrant for your arrest, or may find you guilty and suspend your driver license if you fail to pay your fine.

DEMERIT POINT, SUSPENSION AND REVOCATION INFORMATION

This charge may result in demerit points assessed against you. Accumulating 12 or more points within 12 consecutive months will be cause for suspending your driving privileges. **If you have a probationary license, points for the second and subsequent convictions may be doubled.** Depending on the circumstances and charge, conviction may result in a revocation or suspension of your driving privileges.

Traffic Safety School may be used to reduce points. For more information, contact the DMV.

WISCONSIN UNIFORM CITATION

T331 02/2017 WDOT s345.11 Wis. Stat

You are Notified to Pay or Appear

Appearance Required: NO

Date: MAR-09-2020

Time: 08:30 AM

WEST ALLIS CITY MUNICIPAL COURT
11301 W LINCOLN AVE
WEST ALLIS, WI 53227
(414) 302-8181 WWW.WESTALLISWI.GOV

Form No. and Version CT: MV4017 0901

CITATION NO. BE974433-5

Estimated Points: 3

DEPOSIT Cash- Card: $124.00

Court Use

DA: N

Defendant(Last Name, First, Middle), Street Address, P.O. Box, City, State, Zip

ROSEBROOK, KYLE A

[redacted]

Telephone Number: [redacted]

Birth Date	Sex	Race	HT	WT	Hair	Eyes
[redacted]	M	W	510	160 LBS	BROWN	BLUE

Driver License/Identification Card Number: [redacted] State: WI Exp. Yr.

OPERATING AS: DRIVER

License Plate Number	Plate Type	State	Exp. Yr.
ABA4690	AUT	WI	2020

Vehicle Class: D

Vehicle Endorsements:

Vehicle Identification Number	US DOT No.	Hazmat No.
JTKDE167780225114		

Holds CDL: N

CDL Waiver:

Vehicle Year	Make	Type	Color
2008	TOYT	HB	PLE

Plaintiff

CITY OF WEST ALLIS

Ordinance Violated:

Adopting State Statute: **343.05(3)(A)**

Violation Description

OPERATE W/O VALID LICENSE

BAC:

Overweight:

Agency Space: **20-004270**

Week Day	Date	Time	Actual Speed	Legal	Over
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County	City/Village/Town
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WISCONSIN UNIFORM CITATION

T331 02/2017 WDOT s345.11 Wis. Stat